Calendar Line 6

Case Name: *Victor Rangel v. President and Board of Trustees of Santa Clara College, et al.*
Case No.: 23CV413920

This is a putative class and representative Private Attorneys General Act ("PAGA") action. Plaintiff Victor Rangel alleges defendant Presidents and Board of Trustees of Santa Clara College ("SCU" or "Defendant") committed various wage and hour violations.

Before the Court is Plaintiff's motion to enforce the August 21, 2024 Discovery Order and for sanctions, which is opposed by Defendant. As discussed below, the Court GRANTS the motion to enforce and GRANTS Plaintiff's request for sanctions, at a reduced amount.

XVIII. BACKGROUND

According to the allegations of the operative first amended complaint ("FAC"), Plaintiff alleges Defendants engaged in a systemic pattern of wage and hour violations under the Labor Code and Industrial Welfare Commission Wage Orders. (FAC, ¶ 3.) Specifically, Plaintiff alleges Defendants failed to: pay all wages; provide meal periods and rest periods or provide compensation in lieu thereof; reimburse necessary business-related costs; provide accurate itemized wage statements; and pay all wages due upon separation of employment.

Based on the foregoing, Plaintiff initiated this action on March 30, 2023, with the filing complaint and on July 9, 2023, he filed the FAC, which asserts claims for: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to rest breaks; (5) failure to reimburse business expenses; (6) failure to provide accurate itemized wage statements; (7) failure to pay wages timely during employment; (8) failure to pay all wages due upon separation of employment; (9) violation of Business and Professions Code section 17200, *et seq*,; and (10) enforcement of Labor Code § 2698, *et seq*.

On August 14, 2024, the Court (Hon. Adams) issued its order (the "Discovery Order") which granted Plaintiff's motions to compel, in part and denied them, in part. Plaintiff moves to an order enforcing the Discovery Order and for sanctions. On July 24, 2025, the Court entered its order, which granted Plaintiff's motion for preliminary approval. On January 21, 2026, the Court (Hon. Adams) issued its order (the "Sanctions Order"), which denied Plaintiff's motions for sanctions against Defendant.

I. MOTION TO ENFORCE THE DISCOVERY ORDER

Plaintiff moves for an order regarding request for production of documents Nos. 3 & 5; and monetary sanctions in the amount of $25,000.

Misuses of the discovery process include, but are not limited to: disobeying a court order to provide discovery. (See Code Civ. Proc., § 2023.010, subd. (g).) "[I]f a party fails to obey an order compelling further responses, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a termination sanction… in lieu of, or in addition to, that sanction, the court may impose a monetary sanction." (Code Civ. Proc., § 2031.310, subd. (i); see also Code Civ. Proc., § 2030.300 [interrogatories].)

Plaintiff argues that Defendant did not comply with the Discovery Order nor did it cure that failure at any time. (Plaintiff's Memorandum of Points and Authorities ("MPA"), p. 2:25-

26.) On July 24, 2025, the Court granted Plaintiff's motion for preliminary approval. (MPA, p. 4:1.) Defendant was supposed to provide the Class data to the settlement administrator, ILYM Group, Inc., by August 8, 2025. (MPA, p. 4:2-3.) Using the information received, ILYM concluded that the conversion from pay periods to workweeks would trigger the escalator clause. (MPA, p. 4:3-6.) Defendant said it needed to review the issue and did not provide a response as to whether it would pay pursuant to the escalator clause or provide revised class data reflecting a precise cut-off date. (MPA, p. 4:6-8.) Subsequently, Plaintiff moved for sanctions based on Defendant's behavior and on January 21, 2026, the Court (Hon. Adams) issued its order (the "Sanctions Order"), which denied Plaintiff's motions for sanctions against Defendant. (MPA, p. 4:9-15.)

On January 15, 2026, ILYM circulated revised calculated and a proposed mailing date and defense counsel approved the revised calculations the same day—Plaintiff did not approve the calculations because the total workweek count appeared to decrease. (MPA, p. 4:17-23.) Plaintiff requested the complete time and pay records used to calculate class workweeks and PAGA pay periods, along with documentation sufficient to identify who had been removed from the class and on what basis. (MPA, p. 4:24-26.) On January 22, 2026, defense counsel Sara Moore ("Moore") said that Defendant was preparing a proposal, however, it would not agree to provide all the time and payroll records for the putative class because such a production was not required by the settlement. (MPA, pp. 4:26-5:3.) Defendant failed to send the proposal nor did it provide substantive communication explaining the discrepancy or producing underlying time and payroll data needed to evaluate Defendant's numbers. (MPA, p. 5:4-9.)

In its opposition, Defendant disputes the need for full production. (Defendant's July 2026 Opposition ("Opp."), pp. 7:22-6:9.) It further states it "commits to completing and submitting its supplemental class data file to ILYM no later than July 17, 2026…and will file a declaration with the Court by that date confirming the submission and summarizing the corrected figures along with a proposed date by which ILYM can complete the verification and mailing process." (Opp., pp. 8:27-9:3.) The Court's docket does not reflect a timely filed declaration or a late filed one besides the declaration filed in support of Defendant's opposition. Therefore, there is no evidence before the Court of an supplemental data sent to ILYM or to Plaintiff. Plaintiff states in his reply, "when [Plaintiff's counsel] called ILYM on July 16, 2026, at 5:00 pm, the evening before the Defendant claims its data would be produced, ILYM was shocked to learn that Defendant was going to send them anything, as they have not responded to their communications or initiated any communications regarding verification." (Plaintiff's Reply ("Reply"), p. 19-22.)

In its Sanctions Order, the Court (Hon. Adams) stated that,

> Defendant did not diligently engage with schedule needed to finalize the settlement after preliminary approval. Indeed, from September 11, 2025, through at least the hearing on this motion, Defendant failed to *clearly communicate with Plaintiff*—first, regarding how it intended to proceed with the escalator clause and second, whether it had provided all of the necessary information to the claims administrator for notice to be sent to the class. In fact, in response to contacts from Plaintiff's counsel, it is apparent that Defendant's counsel simply could have provided a short status update if Defendant needed more time or was working on gathering information rather than not responding

> at all. Moreover, it appears that Defendant also *delayed its communications with the claims administrator or failed to confirm that the administrator had all of the information it needed to proceed.* That type of conduct is discourteous and unacceptable, and Plaintiff and Plaintiff's counsel were understandably frustrated.

(Sanctions Order, pp. 6:22-7:8 [emphasis added].)

Based on the evidence submitted by Plaintiff's counsel Victoria Harp ("Harp"), it appears this conduct is ongoing. (Harp Declaration ("Decl."), Exh. B.) Moreover, in lieu of communicating with opposing counsel or the settlement administrator, defense counsel continues to act unilaterally without explanation, despite the already protracted settlement process administration process.

The Court is not persuaded by Defendant's assertions that its substantial compliance with the Discovery Order is sufficient address the issues at present. Here, it is undisputed that full production in compliance with the Discovery Order did not occur. (See MPA, p. 2:25-28; Opp., p. 9:12-21.) Defendant fails to cite to any authority in support of its arguments that substantial compliance and/or good faith efforts to produce some responsive information is sufficient to overcome the obligation created by the Discovery Order, which was not narrowed at any time.

Moreover, Defendant states that since January 2026, it "has re-reviewed the figures and prepared a supplemental class list which addresses the lower workweek count. Although these numbers have not been finalized or approved, it is clear that further revisions to the figures shared in January 2026 will be necessary to ensure they are accurate." (Opp., p. 7:12-16.) In this Court's view, it is prudent for Defendant to produce the records pursuant to the Discovery Order so that Plaintiff can also analyze the figures, rather than Defendant providing information on its own timeline, which defense counsel has had trouble adhering to, and in the piecemeal fashion that it has been providing it in.

Thus, while production of the underlying time and payroll records pursuant to the Discovery Order may be beyond what the parties agreed was required at the time they agreed on the Settlement, it appears to the Court that it is necessary in order for the Settlement to proceed.

Accordingly, Plaintiff's motion to enforce the Discovery Order is GRANTED. Defendant is ordered to provide verified, code-compliant responses within 30 days of this order.

XIX. REQUEST FOR SANCTIONS

Plaintiff moves for sanctions against Defendant and/or defense counsel in the amount of $25,000.

When misuse of the discovery process occurs, the Court may impose whatever sanctions are just, including issue sanctions, evidentiary sanctions, and monetary sanctions as follows:

> The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both

> pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(Code Civ. Proc. § 2023.030, subd. (a).)

It is the moving party's burden to demonstrate the responding party's failure to obey the earlier discovery order. Then the burden of proof shifts to the party seeking to avoid sanctions to establish a suitable justification for his or her conduct. (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201 (*Corns*).) Other than for contempt, "disobedience" of a court order does not require a showing of willfulness, just a failure to obey. (Weil & Brown, *supra,* at ¶ 8:860; citing *Puritan Ins. Co. v. Super. Ct.* (1985) 171 Cal.App.3d 877, 884; *Societe Internationale v. Rogers* (1958) 357 U.S. 197, 208.) "[T]he phrase 'substantial justification' has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact." (*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434 (*Doe*).)

Here, Plaintiff met the burden to demonstrate Defendant's failure to obey the Discovery Order. Defendant contends its good faith conduct and substantial compliance justify its failure to comply with the Discovery Order. Defendant argues that it did not comply with the Discovery Order because the parties agreed on the Settlement and Plaintiff agreed to accept a sampling of time and pay records for mediation purposes. However, both parties detail extensive post-administration conduct since Plaintiff's motion for preliminary approval was granted. Defendant fails to offer any explanation or justification regarding its failure to provide the necessary information, especially as, by its own admission, the figures provided have not been complete and/or fully-reconciled. (See Opp., p. 8:19-24.) Moreover, Defendant has repeatedly set deadlines and represented to the Court that it will adhere to them but failed to do so without explanation. Thus, the Court cannot conclude that defense counsel acted with substantial justification in disobeying the Discovery Order, especially after the disputes regarding the Class Members and workweeks persisted. As a result, it finds sanctions are warranted in this instance. However, the Court finds the amount requested to be excessive. Thus, it will award Plaintiff a reduced amount of $12,560 ($625/hour x 20 hours + $60).

Accordingly, Plaintiff's request for sanctions is GRANTED at a reduced amount.

XX. CONCLUSION

Plaintiff's motion to enforce the Discovery Order is GRANTED and the request for sanctions is GRANTED at a reduced amount of $12,560. Defendant is ordered to provide verified, code-compliant responses within 30 days of this order.

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Calendar Line 7

Case Name: *Olguin v. Talamo Food Services, Inc., et al.*
Case No.: 23CV426584

This is a representative action under the Private Attorneys General Act ("PAGA"). Plaintiff Anabel Olguin alleges that defendant Talamo Food Service, Inc. committed various wage and hour violations and she seeks PAGA penalties for those violations.

Before the Court is Plaintiff's motion for approval of PAGA settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

XXI. BACKGROUND

According to the allegations of the operative Complaint, Defendant is in the business of processing cheese for food service, retailers, and commercial businesses. (Complaint, ¶ 12.) Plaintiff was employed as a Production Packer from approximately 2018 to May 31, 2023, and her primary duties included packing different types of cheese and sealing it in the appropriate labeled bag. (Complaint, ¶ 13.) Defendant failed to: provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; pay overtime wages; pay minimum wages; timely pay wages during employment; pay all wages due to discharged and quitting employees; and furnish accurate itemized wage statements.

Based on the foregoing, Plaintiff initiated this action on November 30, 2023, with the filing of the operative Complaint seeking a single claim for civil penalties under PAGA.

Plaintiff now seeks an order: approving the PAGA settlement; approving reasonable attorneys' fees; approving Phoenix Settlement Administrators ("Phoenix") as the administrator; approving administration costs to Phoenix; and dismissing this action with prejudice.

XXII. LEGAL STANDARD FOR APPROVING PAGA SETTLEMENT

Under PAGA, an aggrieved employee may bring a civil action personally and on behalf of other current or former employees to recover civil penalties for Labor Code violations. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 [2022 U.S. LEXIS 2940.) 75 percent of any penalties recovered go to the Labor and Workforce Development Agency (LWDA), leaving the remaining 25 percent for the employees. (*Ibid.*) PAGA is intended "to augment the limited enforcement capability of [LWDA] by empowering employees to enforce the Labor Code as representatives of the Agency." (*Id.* at p. 383.) A judgment in a PAGA action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. (*Id.* at p. 381.)

Labor Code section 2699, subdivision (l)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" PAGA. The court's review "ensur[es] that any negotiated resolution is fair to those affected." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) "[C]lass certification is not required" in this context as in a class action. (*Haralson v. U.S. Aviation Servs. Corp*. (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 (*Haralson*).)